

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING AND REPEALING MULTIPLE SECTIONS OF CHAPTER 9.24, WEAPONS, OF TITLE 9, PUBLIC PEACE AND WELFARE, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, RELATING TO THE SALE, TRANSPORT, DISCHARGE, POSSESSION AND REGULATION OF FIREARMS TO BETTER CONFORM TO STATE STATUTE AND AVOID DUPLICATION WITH FEDERAL LAW."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 9.24.020, Exceptions, Section 9.24.030, Discharging firearms prohibited, Section 9.24.070 Sale or possession of firearms without manufacturer's identification mark prohibited, and Section 9.24.090, Carrying deadly weapons on school property, of Chapter 9.24, Weapons, of Title 9, Public Peace and Welfare, of the City of Cheyenne, Wyoming, are hereby amended to read:

9.24.020 - Exceptions.

This chapter shall not apply to duly appointed officers of the city, county or state or of the United States in the lawful discharge of their duties as such officers, nor to transactions in which delivery is made of a ~~pistol~~ firearm by mail or other common carrier. ~~to a destination not within the city.~~

9.24.030 - Discharging firearms prohibited.

- A. No person shall discharge within the city any firearm, unless such discharge occurs within the confines of an indoor range or in self-defense pursuant to Wyo. Stat. Section 6-2-602.
- B. No minor shall wear or carry any air gun, paintball gun, bow, or crossbow in public and not within a range. No minor shall discharge any projectile from an air gun, paintball gun, bow, or crossbow unless under the supervision of an adult. No person shall discharge any projectile from an air gun, paintball gun, bow, or crossbow, unless such discharge occurs within a range utilizing procedures and structures to prevent the discharged projectiles from causing damage to persons or property, both inside and outside the confines of the range.
- C. It shall be a violation of the provisions of this chapter for any person to discharge from an air gun, paintball gun, bow, crossbow, or firearm any projectile that escapes the confines of the range in which the projectile was discharged, whether or not the discharged projectile causes damage to persons or property.

9.24.070 - Sale or possession of firearms ~~without~~ with manufacturer's identification mark or serial number removed prohibited.

No person shall receive, possess, sell, lease or otherwise transfer any firearm from which the manufacturer's identification mark or serial number has been removed.

9.24.090 - Carrying deadly weapons on school property.

- A. School Bus Defined. For purposes of this section, "school bus" means every motor vehicle that is owned by or leased to or registered to a school district and is used to transport children to or from school in conjunction with school activities and is designed for and capable of carrying twelve (12) or more passengers, but not including buses operated by common carriers in transportation of school children or buses owned by a community college or the University of Wyoming.
- B. Deadly Weapon Defined. For purposes of this section, "deadly weapon" means, but is not limited to, a firearm, explosive or incendiary material or any other device, instrument, material or substance which, in the manner it is used or intended to be used, is reasonably capable of producing death or serious bodily injury.
- C. Carrying Deadly Weapons Restricted. No person, except a sworn peace officer, shall possess, wear or carry a deadly weapon on a school bus as defined in this section or within the boundaries of real property owned or used by a school district primarily for the education of any student in any grade from kindergarten through twelfth grade.
- ~~D. Application to Weapons in Motor Vehicles. This section shall not apply to any person possessing a deadly weapon inside a motor vehicle within the boundaries of real property owned or used by a school district when such deadly weapon is in plain view through a window at all times and such deadly weapon is securely placed in a rack whose use is principally for the storage of such deadly weapon and such weapon is not in a position as to be capable of being discharged.~~
- ~~E.D.~~ Application to Instructors of Courses. This section shall not apply to any person possessing a deadly weapon within the boundaries of real property owned or used by a school district at the specific time designated by the instructor of a course of study in the use of such deadly weapon and which such course is approved by the school district.
- ~~F.E.~~ Application to Concealed Weapons. This section shall not apply to any person possessing a valid concealed weapon permit, as defined under Wyo. Stat. Section 6-8-104 legally issued to that person by the state of Wyoming lawfully carrying a concealed weapon as authorized pursuant to Wyo. Stat. Sections 6-8-104 and 6-8-105 and any applicable rules lawfully promulgated consistent with Wyoming law.

Section 2. That Section 9.24.120, Records to be kept, of Chapter 9.24, Weapons, of Title 9, Public Peace and Welfare, of the City of Cheyenne, Wyoming, is hereby repealed.

9.24.120—Records to be kept.

~~A true record shall be made by each licensed manufacturer or dealer of each firearm sold, pledged as security for a loan, transferred or otherwise disposed of at wholesale or retail. This record shall contain the information and be used as required by state law.~~

Section 3. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 4. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
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